

## 24SMCV05296 24SMCV05296

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-21

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Tentative Ruling

10710

Chalon Road Reo, LLC v. Jonathan Menlo, et al. Case No. 24SMCV05296

Hearing

Date: August 21, 2026

Plaintiff's

Motion for Attorneys' Fees

Background

Plaintiff

10710 Chalon Road Reo, LLC sued Defendants Jonathan Menlo (Menlo), Meir Siboni (Sibioni), and Jacob Wizman (Wizman) for breach of contract in October 2024. Plaintiffs allege that in 2021, Defendants guaranteed a \$14,750,000.00 loan secured by real property located at 10710 Chalon Road, Los Angeles, California 90077. (First Amended Complaint (FAC), ¶¶ 8-10.) Plaintiffs claim that when the Borrowers defaulted on the loan, the loan's trustee sold the property to Plaintiff with an outstanding loan balance. (FAC, ¶ 17.) Plaintiffs claim that the sale did not satisfy the loan balance, leaving a deficiency of \$3,922,824.51. (FAC, ¶ 19.) Plaintiff filed this action for the balance of the loan because they believe that Defendants did not pay the balance of the loan, breaching their guaranty. (FAC, ¶¶ 35-36.)

Sibioni

filed a bankruptcy petition in 2023. Plaintiff's claims against Sibioni are

stayed pending that action. (Case No. 2:23-bk11 18208-NB.)

In

February 2025, the parties stipulated to extend Wizman's deadline to answer and to allow him to file a cross-complaint against parties other than Plaintiff and Sibioni. (02/07/2025 Joint Stipulation.)

On

May 13, 2025, the Court issued a writ of attachment against Menlo and Wizman for \$4,469,381.01, representing the unpaid balance on the loan. (May 13, 2025, Minute Order.)

On

June 27, 2025, the Court granted Plaintiff's motion to sever claims against Sibioni. (June 27, 2025, Minute Order.)

On

August 25, 2025, Plaintiff and Menlo stipulated to dismiss Plaintiff's claims against Menlo pursuant to a confidential settlement agreement. (August 25, 2025, Stipulation for Order of Dismissal.)

On

November 14, 2025, after hearing, the Court granted Plaintiff's motion for summary judgment as to Wizman. (November 14, 2025, Minute Order.)

On

January 30, 2026, the Court entered judgment in favor of Plaintiff and against Wizman. The Court awarded Plaintiff "a judgment against Defendant Jacob Wizman in the amount of \$4,975,468.07 as damages through and including January 30, 2026 . . ." (January 30, 2026 Judgment at p. 2:5-7.) The Court deemed Plaintiff the prevailing party and set forth that Plaintiff "is entitled to court costs and attorney's fees, if allowed by contract or statute[.]" (Id. at p. 2:13-14.)

On

May 8, 2026, Plaintiff filed and served the instant motion for attorneys' fees against Wizman.

On

August 10, 2026, Wizman filed an opposition to the motion for attorneys' fees.

On

August 11, 2026, Wizman filed a notice of withdrawal of the opposition to the motion for attorneys' fees. Therein, Wizman indicates that Wizman "will not be opposing Plaintiff's [m]otion for [a]ttorney's [f]ees." (August 11, 2026 Notice of Withdrawal at p. 2:4.)

On

August 12, 2026, Plaintiff replied.

Due

to the withdrawal of the opposition, the Court deems the motion for attorneys' fees unopposed. "Contentions are waived when a party fails to support them with reasoned argument and citations to authority." (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.) Accordingly, the Court finds that Wizman has conceded to the arguments raised in the moving papers.

Motion for Attorneys' Fees

Moving

Party Argument

Plaintiff

requests attorneys' fees in the amount of \$426,630.40, pursuant to contract, against Wizman. (Not. of Mot., p. 2:7-8.) Plaintiff argues that it is the prevailing party and is contractually entitled to recover reasonable attorneys' fees from Wizman. (Memo. of Ps and As, pp. 7-8.) Plaintiff asserts that the requested attorneys' fees are reasonable under the lodestar analysis. (Id., pp. 8-13.)

Governing

Law

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144

Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

A prevailing party “includes the party with a net monetary recovery . . . .” (Code Civ. Proc., § 1032, subd. (a)(4).) “In any contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” (Civ. Code, § 1717, subd. (a).) “[T]he party prevailing on the contract shall be the party who recovered a greater relief on the contract.” (Civ. Code, § 1717, subd. (b)(1).)

#### Analysis

In support of the motion, Ronald Richards (“Richards”) provides a declaration. Attorney Richards declares, inter alia, that Plaintiff moves for an award of attorneys’ fees based on its contractual right to such fees contained in the Guaranty and the Judgment entered by this Court on January 30, 2026. (Richards Decl. ¶ 4.) Attorney Richards sets forth counsel’s education and experience. (Id. ¶¶ 8, 9-13.) Attorney Richards was admitted to the State Bar of California in June 1995. (Id. ¶ 8.) Attorney Richards’s “hourly billing rate for . . . [Plaintiff] [was] \$1,225/hour from May 1, 2024 through April 2025, \$1,275/hour from May 1, 2025 to April 2026, and \$1,350/hour from May 1, 2026 to the present.” (Id. ¶ 14.) Counsel indicates that counsel’s “hourly rate is comparable, and generally, lower than those of attorneys with similar experience, qualifications, and success who practice at big law firms.” (Id. ¶ 15.) Plaintiff retained “Ronald Richards & Associates . . . in late 2024 to substitute in as counsel in this [a]ction.” (Id. ¶ 17.) “Ronald Richards & Associates has billed . . . [Plaintiff] a total of \$235,875 representing it in connection with this [a]ction.” (Id. ¶ 20.) Attorney Richards spent 185 hours on this action. (Id. ¶ 20.) Among other tasks, Attorney Richards reviewed and analyzed documents, communicated with co-counsel and opposing counsel, and reviewed and revised pleadings. (Id. ¶ 22.)

Attorney Richards and attorney Geoffrey Long (“Long”) did not “duplicate work or billing.” (Id. ¶ 21.)

In

support of the motion, Attorney Long provides a declaration. Attorney Long sets forth counsel’s education and experience. (Long Decl. ¶¶ 4-9.) Attorney Long was admitted to the State Bar of California in December 1996. (Id. ¶ 4.)

Attorney Long’s “hourly billing rate for . . . [Plaintiff] [was] \$785/hour from May 1, 2024 through June 2025, \$820/hour from July 1, 2025 to April 2026, and \$885/hour from May 1, 2026 to the present.” (Id. ¶ 12.) Counsel indicates that counsel’s “hourly rate is comparable to and generally lower than those of attorneys with similar experience, qualifications, and success.” (Id. ¶ 10.) Plaintiff retained Long Law in February 2025. (Id. ¶ 11.) “Long Law has billed . . . [Plaintiff] a total of \$190,755.40 for legal services performed in the [a]ction.” (Id. ¶ 15.) Attorney Long spent 231.7 hours on this action. (Id. ¶ 15.) Attorney Long, among other tasks, “prepare[d] the initial drafts of motions, briefs, discovery, documents, and other correspondence in this [a]ction.” (Id. ¶ 16.) Attorney Long attests that his hourly rates are reasonable. (Id. ¶ 19.)

Initially,

the Court notes that neither attorney Richards nor attorney Long has provided billing records in support of the motion. However, “an award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) Thus, the lack of billing records or invoices is not fatal to the motion.

The Court finds that Plaintiff is entitled to reasonable attorneys’ fees. The Guaranty provides, inter alia, that Wizman must pay attorneys’ fees “within five (5) days of Lender’s written demand . . . from the date such costs or expenses are incurred until the date repaid by or on behalf of the Guarantor . . .” (Richards Decl., Ex. 2 at § 5.) The Guaranty binds “the heirs, legal representatives, successors and assigns of Guarantor and shall insure to the benefit of Lender and its successors and assigns.” (Id., Ex. 2 at § 11(b).) Also, pursuant to the Judgment, the Court deemed Plaintiff as the prevailing party. Therefore, the Court finds that Plaintiff is entitled to contractual attorney’s fees pursuant to Civil Code § 1717.

Further, the Court finds that counsel’s rates and

hours spent are reasonable.

Critically, Defendant withdrew the opposition to the instant motion. (See 08/11/26 Notice of Withdrawal.) The lack of written opposition may be deemed consent to the granting of the motion. (Cal. Rules of Court, Rule 8.54(c).)

Conclusion

Based

on the foregoing, the Court GRANTS Plaintiff's unopposed motion for attorneys' fees. Plaintiff is awarded attorney's fees in the sum of \$426,630.40 against Wizman.